

Effective 5/3/2023

Part 6
Safe at Home Program

77-38-6 Victim's right to privacy -- Option to use victim's initials in publicly available criminal justice documents.

- (1)
- (a) The victim of a crime has the right, at any court proceeding, including any juvenile court proceeding, not to testify regarding the victim's address, telephone number, place of employment, or other locating information unless the victim specifically consents or the court orders disclosure on finding that a compelling need exists to disclose the information.
 - (b) A court proceeding on whether to order disclosure shall be in camera.
- (2)
- (a) A defendant may not compel any witness to a crime, at any court proceeding, including any juvenile court proceeding, to testify regarding the witness's address, telephone number, place of employment, or other locating information unless the witness specifically consents or the court orders disclosure on finding that a compelling need for the information exists.
 - (b) A court proceeding on whether to order disclosure shall be in camera.
- (3)
- (a) Except as provided in Subsection (3)(d), and for an offense occurring on or after July 1, 2026, a victim may request to have the victim's initials rather than the victim's name used in charging documents and any other publicly available filing or document related to the criminal justice process that is created by a prosecuting agency, a court, a law enforcement agency, the Division of Juvenile Justice and Youth Services, the Department of Corrections, the Youth Parole Authority, the Board of Pardons and Parole, or a related entity.
 - (b)
 - (i) For purposes of Subsection (3)(a), a filing or document is publicly available if the filing or document is available to, and accessible by, the general public, even if a member of the public is required to pay a fee to access the filing or document.
 - (ii) For purposes of Subsection (3)(a), a filing or document is not publicly available if the filing or document is made available only to certain parties connected to the proceeding, even if a fee is charged to obtain the filing or document.
 - (c) An entity described in Subsection (3)(a) shall:
 - (i) provide the name of a victim identified by initials in response to a court order; and
 - (ii) maintain any information about a victim that is necessary to respond to a lawful court order.
 - (d) Subsection (3)(a) does not apply to a publicly available filing or document:
 - (i) required for the issuance or enforcement of a criminal protective order described in Title 78B, Chapter 7, Part 8, Criminal Protective Orders, or a criminal stalking injunction described in Title 78B, Chapter 7, Part 9, Criminal Stalking Injunctions; or
 - (ii) created by the Motor Vehicle Enforcement Division described in Section 41-3-104.

Amended by Chapter 449, 2026 General Session